

Although the Court does not altogether explain its position, the essence of its reasoning is evidently that a taxpayer's claim under the Establishment Clause is "not merely one of ultra vires," but one which instead asserts "an abridgment of individual religious liberty" and a "governmental infringement of individual rights protected by the Constitution." Choper, *The Establishment Clause and Aid to Parochial Schools*, 56 Calif. L. Rev. 260, 276. It must first be emphasized that this is apparently not founded upon any "preferred" position for the First Amendment, or upon any asserted unavailability of other plaintiffs.¹² The Court's position is instead that, because of the Establishment Clause's historical purposes, taxpayers retain rights under it quite different from those held by them under other constitutional provisions.

The difficulties with this position are several. First, we have recently been reminded that the historical purposes of the religious clauses of the First Amendment are significantly more obscure and complex than this Court has heretofore acknowledged.¹³ Careful students

¹² The Court does make one reference to the availability *vel non* of other plaintiffs. It indicates that where a federal statute is directed at a specified class, "the proper party emphasis in the federal standing doctrine would require that standing be limited to the taxpayers within the affected class." *Ante*, at 104, n. 25. Assuming *arguendo* the existence of such a federal "best-plaintiff" rule, it is difficult to see why this rule would not altogether exclude taxpayers as plaintiffs under the Establishment Clause, since there plainly may be litigants under the Clause with the personal rights and interests of Hohfeldian plaintiffs. See, e. g., *Board of Education v. Allen*, decided today, *post*, p. 236.

¹³ See, in particular, M. Howe, *The Garden and the Wilderness* 1-31 (1965); C. Antieau, A. Downey & E. Roberts, *Freedom from Federal Establishment* (1964). Not all members of the Court have of course ignored the complexities of the clause's history. See especially *McColum v. Board of Education*, 333 U. S. 203, 238 (dissenting opinion of Reed, J.).